

Franciscus Dylan Rosario,
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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

[PROPOSED] ORDER

STRIKE EXCESS

Hearing: October 6, 2026

Time: 9:00 a.m.

Dept.: 302

Judge: Hon. Joseph M. Quinn

**AUTHORITY TO FILE AND AUTHORITY OF THE CLERK TO AC-
CEPT**

1. Plaintiff appears in propria persona under Code of Civil Procedure section 1014 and Cal. Const. art. I, sections 3 and 16.
2. This paper is lodged as a proposed order under California Rules of Court, rule 3.1312, in connection with Plaintiff's objection that Defendant's September 22, 2026 supplemental brief and declaration exceed the August 26, 2026 briefing order on the motion to declare Plaintiff a vexatious litigant under Code of Civil Procedure sections 391 through 391.7.
3. The Clerk's authority to accept this paper is under Government Code sections 68150 and 69845 and California Rules of Court, rules 2.100 through 2.111, 2.118, 2.119, 2.256, and 2.257. Rejection is limited to the enumerated technical grounds in California Rules of Court,

1 rules 2.118 and 2.119; this paper does not present any of those grounds.

2 4. The Court's authority to consider the substance is under the August 26, 2026 order and Code
3 of Civil Procedure sections 391 through 391.7, 916, and 1049.

4 5. This proposed order accompanies Plaintiff's September 22, 2026 objection. It is not a sec-
5 ond opposition. It does not replace Plaintiff's July 21-22, 2026 proposed order denying the
6 motion.

7 Hearing: October 6, 2026, 9:00 a.m., Dept. 302.

8 **[PROPOSED] ORDER STRIKING PORTIONS OF DEFENDANT'S SEPTEMBER 22, 2026**
9 **SUPPLEMENTAL BRIEF AND DECLARATION**

10 On August 26, 2026, the Court stayed this case, continued Defendant CSAA Insurance Exchange's
11 motion to declare Plaintiff a vexatious litigant to October 6, 2026, at 9:00 a.m. in this department,
12 and limited each party's supplemental brief to six pages on two questions: whether this Court cur-
13 rently has jurisdiction to hear the motion, and the application of *Pittman v. Beck Park Apartments,*
14 *Ltd.* (2018) 20 Cal.App.5th 1009.

15 The Court, having considered Plaintiff's objection to Defendant's September 22, 2026 supplemen-
16 tal brief and the Declaration of Tyler J. O'Connell, rules as follows:

17 1. The following portions of Defendant's supplemental brief are stricken and shall be disre-
18 garded for any purpose on the motion: page 1, lines 25-28; page 2, lines 1-3; page 2, lines
19 21-26; Section C (page 4, line 4, through page 5, line 9); Section D (page 5, line 10, through
20 page 6, line 13); and page 6, lines 15-17.

21 2. The Declaration of Tyler J. O'Connell and Exhibits A, B, and C are stricken and shall be
22 disregarded for any purpose on the motion.

23 3. The October 6, 2026 hearing is limited to the two questions in the August 26, 2026 order.

24 4. The August 26, 2026 stay remains in place until the Court decides the jurisdiction question.

25 IT IS SO ORDERED.

26 Dated: September 22, 2026



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